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Case Number: 25PSCV04436 Hearing Date: September 1, 2026 Dept: G

Defendant

Cesar Daniel Vallejo's Motion to Vacate Judgment and Set Aside Default

Respondent:

Plaintiff California Business Bureau Inc.

TENTATIVE

RULING

Defendant

Cesar Daniel Vallejo's Motion to Vacate Judgment and Set Aside Default is DENIED
WITHOUT PREJUDICE.

BACKGROUND

This

is debt collection action. On February 3, 2023, defendant Cesar Daniel Vallejo (Vallejo) allegedly became indebted to nonparty Pomona Valley Hospital Medical Center. On March 11, 2025, Pomona Valley Hospital Medical Center allegedly assigned the underling debt to plaintiff California Business Bureau Inc. (California Business Bureau) for collection.

On

December 11, 2025, California Business Bureau filed the Complaint, alleging causes of action for (1) open book account, (2) account stated, and (3) quantum meruit.

On

February 3, 2026, the court entered default against Vallejo. On April 24, 2026, the clerk issued a default judgment in California Business Bureau's favor.

On

August 3, 2026, Vallejo filed this motion to set aside entry of default and vacate default judgment. On August 10, 2026, California Business Bureau filed the opposition, and on there is no reply.

The

motion is set for hearing on September 1, 2026.

ANALYSIS

Vallejo

moves to set aside the entry of default and vacate the resulting default judgment. For the following reasons, the motion is DENIED WITHOUT PREJUDICE.

Legal

Standard

Whenever

an application for relief from default is made no more than six months after entry of default, is in proper form, and is accompanied by the moving party's sworn affidavit attesting to their mistake, inadvertence, surprise, or excusable neglect, the court may vacate any (1) resulting default entered by the clerk against the moving party or (2) resulting default judgment or dismissal entered against the moving party, unless the court finds that the default or dismissal was not in fact caused by the moving party's mistake, inadvertence, surprise, or excusable neglect.

(Code Civ. Proc., § 473, subd. (b).)

When the motion is based on a party's mistake, the "six-month period runs from entry of default, not entry of judgment."

(Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36,

42.) "The six-month time limit for

granting statutory relief is jurisdictional and the court may not consider a motion for relief [under Section 473] made after that period has elapsed." (Ibid., emphasis

added.)

Courts

liberally grant motions to vacate default judgments when relief is promptly sought and the opposing party is not prejudiced as the law strongly favors resolution on the merits. (*Kramer v.*

Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.) Courts only require “slight evidence” to support vacating a default and resolve all doubts in favor of the party seeking relief. (*Ibid.*) However, “[t]he only occasion for the application of [S]ection 473 is where a party is unexpectedly placed in a situation to [their own] injury without fault or negligence of [their] own and against which ordinary prudence could not have guarded.” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; see *Hodge Sheet Metal Products v. Palm Springs Riviera Hotel* (1961) 189 Cal.App.2d 653, 657, defining “excusable neglect” within the meaning of Section 473 as “neglect which might have been the act of a reasonably prudent person under the same circumstances.”)

Discussion

As

a preliminary matter, Vallejo failed to include a proof of service with the motion. “Before filing any document, a party must serve, by any method permitted by the Code of Civil Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule. The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . .

The proof must name each party represented by each attorney served.” (Cal. Rules of Court, rule

8.817(a)(1)–(a)(2).) Here, Vallejo did

not attach a proof of service to the motion or file a separate proof of service with the motion. However, California

Business Bureau timely filed an opposition on the merits and did not argue that it did not receive proper notice of the motion.

(See generally, *Opp.*; see also *Moulton Niguel Water Dist. v.*

Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”) Thus, in the interest of

judicial efficiency, the court considers the motion on the merits. (Cal. Rules of Court, rule 3.1300(d); see *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2

Cal.App.5th 252, 262.)

Vallejo

argues that his failure to file a responsive pleading was the result of excusable neglect. The court disagrees.

The

proof of service demonstrates that California Business Bureau served Vallejo with process by substituted service on December 18, 2025. (See 12/22/2025 POS, ¶ 5.) According to Vallejo, he promptly hired an

attorney to represent him in this case, but the attorney withdrew before filing a responsive pleading. (See Mot.,

Vallejo Decl., ¶¶ 3–5.) Thereafter,

Vallejo retained his current counsel. (See

Mot., Vallejo Decl., ¶¶ 5–6; see also Mot., Kim Decl., ¶¶ 3–4.) The court entered default against Vallejo on February 3, 2026. (See 2/3/2026 CIV-100, p.

1.) Neither Vallejo, his former

counsel, nor his current counsel specify when former counsel withdrew or when Vallejo retained current counsel.

Without such information, the court cannot determine whether Vallejo acted promptly, whether the failure to file a responsive pleading was the result of his excusable neglect, or potentially whether the failure fell on former or current counsel. Thus, Vallejo fails to meet his burden for relief from default under Section 473, subdivision (b).

Therefore,

the motion to set aside entry of default and vacate default judgment is DENIED WITHOUT PREJUDICE.

CONCLUSION

For

these reasons, the motion to vacate judgment and set aside default is DENIED WITHOUT PREJUDICE.